

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 05/13/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties, or failure to specify in detail the nature of the contest to the Court's tentative ruling, will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with California Rules of Court Rule no. 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09> ID: 161
950 4895
Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-03039
CASE NAME: MELANIE ROSE VS. FIRST WALNUT CREEK MUTUAL
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 8. If the tentative ruling is uncontested, this CMC is continued to August 26, 2026 at 9:00 a.m. to trial the Motion for Reconsideration.

2. 9:00 AM CASE NUMBER: C24-03057
CASE NAME: SIOUX EWY VS. CITY OF WALNUT CREEK
*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on the City of Walnut Creek's Demurrer to Plaintiff's Complaint. Since the Demurrer is not opposed, this Case Management Conference is **vacated**. No appearance is required on May 13, 2026.

3. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 14. If the tentative ruling is uncontested, this CMC is continued to September 2, 2026 at 9:00 a.m..

4. 9:00 AM CASE NUMBER: N25-1365

CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 17. If the tentative ruling is uncontested, this CMC is continued to August 13, 2026 at 8:30 a.m.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)**

FILED BY: MILLER, RAYMOND R.

TENTATIVE RULING:

Summary

Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal, filed on November 18, 2025 was continued from March 24, 2026 to April 15, 2026 because the Court was not satisfied that Defendant filed proof of service to Plaintiffs of this Motion.

On April 15, 2026, the Court convened the hearing and found, again, that procedural issues pertaining to service remain. (See Unreported Minute Order dated April 15, 2026). The Court continued the hearing from April 15 to May 13, 2026 and allowed Plaintiffs to file an opposition.

To date, no opposition has been filed with the Court. As such, there is good cause to grant